

(Employment Abroad) Act, 1913, and this Act may be cited together as the Children (Employment Abroad) Acts, 1913 and 1930.

(2) It is hereby declared that this Act extends to Northern Ireland.

CHAPTER 22.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army and Air Force.
[29th April 1930.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and forty-eight thousand ~~nine~~ hundred, including those to be employed at the depots in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions, other than Aden :

And whereas under the Air Force (Constitution) Act, 7 & 8 Geo. 5 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-two thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and

naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and thirty on the following days :—

- (a) In Great Britain and Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1930.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament (that is to say):—

- (a) Within Great Britain and Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and thirty, to the thirtieth day of April, one thousand nine hundred and thirty-one, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and thirty, to the thirty-first day of July, one thousand nine hundred and thirty-one, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the First Schedule to this Act.

Army Act
and Air
Force
Act to be in
force for
specified
times.

Prices in
respect of
billeting.

AMENDMENTS OF ARMY AND AIR FORCE ACTS.

PART I.

AMENDMENT OF ARMY ACT.

4. In section one hundred and thirty-eight of the Army Act (which relates to penal stoppages from ordinary pay of soldiers) for paragraph (7) there shall be substituted the following paragraph:—

Amendment
of Army
Act, s. 138.

“(7) The sum required to pay any fine awarded by a court martial or his commanding officer, or any fine, penalty, damages, compensation, or costs which a civil court before which he has been charged with an offence has ordered him to pay; and”

PART II.

AMENDMENTS OF ARMY ACT APPLICABLE ALSO TO
AIR FORCE ACT.

Abolition of
death
penalty in
certain
cases.

5. For the purpose of abolishing death as a penalty for certain offences, the following amendments shall be made in the Army Act,—

- (1) In section four, paragraph (7) (including the word “or” immediately preceding that paragraph) shall be omitted, and in section five after paragraph (6) the following paragraph shall be inserted :—

“ or

“ (7) Misbehaves or induces others to misbehave before the enemy in such manner as to show cowardice.”

- (2) In subsection (1) of section six, paragraphs (b), (h) and (k) (including the word “or” immediately preceding the last mentioned paragraph) shall be omitted, and in subsection (2) of the said section after paragraph (e) the following paragraphs shall be inserted :—

“ or

“ (f) Without orders from his superior officer, leaves his guard, piquet, patrol or post; or

“ (g) By discharging firearms, drawing swords, beating drums, making signals, using words, or by any means whatever, intentionally occasions false alarms in action, on the march, in the field, or elsewhere; or

“ (h) Being a soldier acting as sentinel, leaves his post before he is regularly relieved,”

- (3) In subsection (1) of section twelve, for the word “death” there shall be substituted the words “penal servitude.”

Amendment
of Army
Act, s. 91.

6.—(1) For section ninety-one of the Army Act, the following section shall be substituted, but without prejudice to the continuing validity and effect of any

order made under the said section ninety-one before the date on which this section comes into operation :—

“ 91.—(1) The Army Council or any officer deputed by them for the purpose may, if they or he think proper, on account of a soldier's lunacy, cause any soldier of the regular forces on his discharge, and his wife and child, or any of them (being in such a state of health as not to be liable to suffer bodily or mental injury by removal) to be sent to the poor law area in England, Scotland or Northern Ireland to which, under the statutes for the time being in force, he appears from the statements made in his attestation paper and other available information to be chargeable; and such soldier, wife, or child, if delivered after reasonable notice, in the case of England or Scotland, at any institution of the poor law authority of the said area, or, if a particular institution has been designated for the purpose by the clerk to that authority, at that institution, and, in the case of Northern Ireland, at the institution in which persons settled in the said poor law area are received, shall be received by the master or other proper officer of the institution :

Delivery of lunatic soldier on discharge with his wife or child at poor law institution, or of dangerous lunatic at asylum.

“ Provided that the Army Council, or officer deputed by them for the purpose, if satisfied that the soldier is a dangerous lunatic, may by order in writing cause him to be sent direct, in the case of England or Scotland, to any asylum in which lunatics who are in an institution of, or are chargeable to, the said poor law area may lawfully be received, or, if a particular asylum has been designated for the purpose by the clerk to the poor law authority of the area, to that asylum, and, in the case of Northern Ireland, to the asylum of the district in which the said poor law area is situate.

“ (2) The clerk to any poor law authority in England or Scotland shall, on receiving a request from the Army Council or officer deputed by them for the purpose, forthwith designate to them or him an institution of the authority, or, as the case may be, an asylum in which lunatics who are in an

institution of, or are chargeable to, the area of the authority may lawfully be received, as being a convenient institution or asylum for the reception of any person mentioned in the request.

19 & 20
Geo. 5. c. 25.

“(3) In this section the expression ‘poor law area’ means, in the case of England, a county or a county borough, in the case of Scotland, a county or a large burgh, within the meaning of the Local Government (Scotland) Act, 1929, and, in the case of Northern Ireland, a poor law union; the expression ‘poor law authority’ means, in relation to a county, county borough or large burgh, the council thereof and in relation to a poor law union, the board of guardians thereof; and the expression ‘institution’ means, in the case of England or Northern Ireland, a workhouse, and, in the case of Scotland, a poorhouse.

53 Vict. c. 5.

25 & 26 Vict.
c. 54.

30 & 31 Vict.
c. 118.

“(4) An order made under the proviso to subsection (1) of this section shall be of the like effect, and the like proceedings shall be taken thereon, as if it were, in the case of a lunatic sent to an asylum in England, a summary reception order made under the Lunacy Act, 1890, in the case of a lunatic sent to an asylum in Scotland, an order of the sheriff made under section fifteen of the Lunacy (Scotland) Act, 1862, and in the case of a lunatic sent to an asylum in Northern Ireland, a warrant granted by two justices under section ten of the Lunacy (Ireland) Act, 1867; and for the purposes of any enactment relating to the cost of the maintenance of any such lunatic, the poor law area to which in the opinion of the Army Council, or officer deputed by them, the lunatic is chargeable shall be deemed to be the place from which he was sent to the asylum.”

4 Edw. 7.
c. 5.

(2) Notwithstanding anything in section fourteen of the Army (Annual) Act, 1904, this section shall come into operation, in so far as it relates to the removal of persons to institutions or asylums in England or Northern Ireland, upon the passing of this Act and, in so far as it relates to the removal of persons to institutions or asylums in Scotland, on the sixteenth day of May, nineteen hundred and thirty.

7. In subsection (1) of section one hundred and forty-five of the Army Act (which relates to the liability of a soldier to maintain wife and children) for the words "any union, parish or place" there shall be substituted the words "any area or place."

Amendment
of Army
Act, s. 145.

8. After section 187A of the Army Act, the following section shall be inserted—

Application
of Army Act
in relation
to Aden.

"187B.—(1) This Act shall apply in relation to Aden as if it were a colony and as if the Resident and Commander-in-Chief or, in his absence, the person acting as such, were the Governor thereof.

(2) In this section the expression 'Aden' includes any dependency of Aden, but does not include the Aden Protectorate."

9. References in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of this Part of this Act shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply, and to the special modifications set out in the Second Schedule to this Act.

Application
to Air Force.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

PRICES IN RESPECT OF BILLETING.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sevenpence each.
Dinner as so specified - - - -	Tenpence.
Supper as so specified - - - -	Fourpence.

1ST SCH.
—cont.

Accommodation to be provided.

Maximum Price.

Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw a day for each horse.	Two shillings and threepence a day.
Stable room without forage - - -	Sixpence a day.
Lodging and attendance for officer - -	Three shillings a night.

Note.—An officer shall pay for his food.

In the application of this Schedule to the Air Force, references to Air Force Act and airman shall be substituted for references to Army Act and soldier.

Section 9.

SECOND SCHEDULE.

SPECIAL MODIFICATIONS TO BE MADE IN PART II. OF
THIS ACT FOR THE PURPOSES OF ITS APPLICATION
TO THE AIR FORCE ACT.

The paragraph which is directed to be inserted in section five of the Army Act after paragraph (6) of the said section shall, in the case of the Air Force Act, be inserted after paragraph (8) and be numbered “(9)” instead of “(7).”

From the second of the paragraphs which are directed to be inserted in subsection (2) of section six of the Army Act, there shall, in the case of the Air Force Act, be omitted the words “drawing swords, beating drums,” and the words “in action, on the march, in the field, or elsewhere.”

Any reference to section fourteen of the Army (Annual) Act, 1904, shall, in the case of the Air Force Act, be read as a reference to section twenty-seven of the Army and Air Force (Annual) Act, 1920.